



OFFICE OF THE GOVERNOR

Colorado Land Use Commission

RULES AND REGULATIONS (CHAPTERS 1-4)

8 CCR 1501-1

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

PART 1 LAND USE COMMISSION PROCEDURES

Chapter 1 GENERAL RULES OF PROCEDURE

1-1-100 Intent and Purpose.

The intent and purpose of the rules in this chapter shall be to provide for the conduct of the Colorado Land Use Commission, to establish procedures therefore, and to afford interested persons an opportunity to participate in Commission proceedings.

1-1-101 Authority.

These and all other regulations of the Commission are adopted pursuant to 24-65-102, C.R.S. 1973; 24-65-103 (3), C.R.S. 1973; 24-65-104 (2), C.R.S. 1973; 24-4-103 (1), C.R.S. 1973; 24-4-107, C.R.S. 1973; 24-65-106, C.R.S. 1973; 24-65.1-101, et seq. C.R.S. 1973; 31-23-125, C.R.S. 1973.

1-1-102 Meetings.

- (1) A schedule of regular meetings of the Commission shall be established for each fiscal year. The third Friday of each month is designated as the day reserved for regular meetings. At least one meeting shall be held each month.
- (2) At any regular meeting of the Commission, additional meetings or changes in date of regular meetings may be adopted, by a majority of members present, provided that there is a quorum present. If such changes or additions are made, absent members shall be promptly notified by letter or telephone.
- (3) Special meetings may be called by the Chairperson, or any four members of the Commission, provided that five days notice be given to Commissioners.
- (4) Commission meetings shall be conducted according to the following procedure:
 - (a) Call to order and roll call;
 - (b) Approval of Minutes;
 - (c) Public comment
 - (d) Chairperson's report;
 - (e) Director's Report;
 - (f) Other Matters.

1-1-103 Officers.

- (1) The Commission shall elect a Chairperson and a Vice-Chairperson to serve for one fiscal year, or until successors are elected.
- (2) Elections for the two offices shall take place at a regularly scheduled Commission meeting.
- (3) The Chairperson and Vice-Chairperson will perform the customary duties of such offices.

1-1-104 Committees

- (1) The Chairperson shall appoint a nominating committee, subject to approval by the Commission, during the first stated June meeting. The Nominating Committee shall present its recommendations at the meeting during which officers are elected.
- (2) An Executive Committee shall be established, consisting of Chairperson, Vice-Chairperson, and two additional members (one from the East Slope, one from the West Slope).
- (3) The Executive Committee shall meet at the call of the Chair- person and shall exercise general supervision of the business of the Commission; maintain major contacts with Commission Executive Director; establish priorities and work program for the Commission (subject to ratification by the Commission); approve major agenda items; and act for the Commission between scheduled meetings.
- (4) In no instance shall the Executive Committee undertake interpretative action on legislation and executive orders under which the Land Use Commission functions.

1-1-105 Special Assignments.

The Chairperson may assign, from time to time, special duties or responsibilities to individual Commission members; e.g., communications, advisory committee, fiscal matters, staffing. They shall be the Commission contact, for the Executive Director, in these designated matters.

1-1-106 Quorum and Attendance.

- (1) A quorum shall be determined on one of the following bases:
 - (a) When Commission membership is at full strength, nine* five to return a statement to the Commission indicating their intent to remain on the list, their current address, and including payment of the \$12.00 annual mailing list fee. The Director may waive the fee in appropriate cases.
 - (b) If Commission membership is eight or six, a quorum may be considered to be half of the membership;
 - (c) If Commission membership is seven, a quorum shall be four;
 - (d) However, a quorum of five shall be necessary for the Commission to undertake any interpretative action on legislation and executive orders under which the Land Use Commission functions.
- (2) Provided that there is a quorum present at any meeting, a majority of those present may approve or reject any motion presented - except that the Rules of Procedure and other regulations adopted by the Commission may not be changed without the approval of the aforementioned quorum of

five, if the Commission is at full strength, or four members if the Commission is less than full strength.

- (3) Members of the Commission shall be given notice of meetings at least seven (7) days prior to the meeting, unless a meeting is specially convened under shorter notice provisions.
- (4) No resolution, rule, regulation, or formal action of the Commission shall be valid unless made at a meeting that complies with subsections (1) and (2) of this section.

1-1-107 Citizens' Advisory Committee.

- (1) A Citizens' Advisory Committee may be established by the Commission.
- (2) A staff person from the Commission shall be assigned as liaison to the Citizens' Advisory Committee.
- (3) Any recommendations from the Citizens' Advisory Committee must be brought to the Commission and acted upon by the Commission.

1-1-108 Open Meetings.

Pursuant to 24-6-402, C.R.S. 1973, the Commission shall conduct meetings according to the following requirements:

- (1) All meetings of two or more members of the Commission at which any public business is discussed or at which any formal action is taken by the Commission, are declared to be public meetings, open to the public at all times, except as may be otherwise provided by the constitution.
- (2) Any meetings at which the discussion or adoption of any proposed resolution, rule, regulation, or formal action occurs or at which a majority or quorum of the Commission is in attendance shall be held only after compliance with the notice requirements of Commission procedures. In the event no other notice provision is required by Commission procedures, notice of a Commission meeting subject to this section (2) shall be made by publication in a newspaper of general circulation in the state, and by mailing a copy of the notice to every person on the Commission's mailing list at least five days prior to the meeting.
- (3) The Director of the Commission shall maintain a mailing list of persons who request notification of all meetings or of meetings at which certain specified policies will be discussed. The Director shall update the list in January of each year by requesting every person on the list to return a statement to the Commission indicating their intent to remain on the list, their current address, and including payment of the \$12.00 annual mailing list fee. The Director may waive the fee in appropriate cases.
- (4) No resolution, rule, regulation, or formal action of the Commission shall be valid unless made at a meeting that complies with subsections (1) and (2) of this section.

1-1-109 Minutes of Meetings.

- (1) Minutes shall be written in the order of the meeting and shall be recorded promptly.
- (2) Minutes shall include all matters considered and "action taken, if any, but need not be a verbatim transcript. The minutes shall reflect the number of yea and nay votes and by whom, if a division of the vote had been requested by a member of the Commission.

- (3) Minutes shall state, by name, the Commissioners present, and indicate the total number of members of the public attending the meeting who signed the attendance sheet.
- (4) Minutes shall be approved at the next meeting of the Commission. This action shall be reflected in that meeting's minutes.
- (5) Minutes shall be signed by the Chairperson after approval by the full Commission.
- (6) Minutes shall incorporate by reference, all documents acted upon, approved, adopted, etc. Such documents shall then be physically attached to the minutes.
- (7) After minutes are approved by the Commission and signed, they shall be placed in a peg-type top hole binder. All documents attached to the minutes shall be included in the binder.
- (8) At the end of each fiscal year, the minutes shall be permanently bound.
- (9) The minutes shall be kept in a location easily accessible to members of the public and shall be open to public inspection.

1-1-110 Amendments.

The Rules of Procedure adopted by the Commission may be amended by a majority vote of the entire membership of the Commission and pursuant to the provisions of Chapter 3 of the Land Use Commission Procedures.

1-1-111 Financial Disclosure By Commission Members.

By January 30 of each year, Commission members shall disclose on the appropriate form provided by the Attorney General any interest held by the commissioner or the member's immediate family that might conflict with the member's duties on the Commission.

1-1-112 Contracting of Professional Services.

The Commission may contract for professional services for periods not to exceed 6 months. The Commission Chairperson shall act on behalf of the Commission upon the approval of the executive committee. in approving such contracts.

PART 1 LAND USE COMMISSION PROCEDURES

Chapter 2 TEMPORARY EMERGENCY POWER

ARTICLE 1 INITIATION OF PROCEEDINGS

1-2-101 Initial Contact with Commission.

- (1) Temporary emergency power proceedings may be initiated if any of the following persons are contacted and provided with relevant facts by any person, including a member of the commission staff, having information relevant to a development, proposed or in progress, which may constitute a danger of injury, loss, or damage of serious and major proportions to the public health, welfare, or safety:
 - (a) A member of the Land Use Commission;
 - (b) The Director of the Land Use Commission;

- (c) A member of the Land Use Commission staff;
- (2) Initial contact may be made orally or in writing.
- (3) If a member of the Land Use Commission is contacted and provided with relevant facts about a development covered by these provisions, he shall notify the Director of the facts as soon as possible.
- (4) If a member of the commission staff is contacted and provided with relevant facts about a development covered by these provisions, he shall immediately notify the Director of the facts.
- (5) The Director shall include all such notifications in his report to the Commission at its next meeting;
- (6) The commission staff may conduct any preliminary investigations and research concerning a development subject to this regulation prior to formal initiation of proceedings pursuant to this regulation.

1-2-102 Definitions.

As used in this regulation:

- (1) "Developer" means the person or persons in control of a development, and includes any entity of local, state or federal government and any special district or other governing body whatsoever.
- (2) "Development" means any land development activity, proposed or in progress, including any action by any entity of local, state, or federal government and any special district or other governing body whatsoever.
- (3) "Local government" means a board of county commissioners, a city council, or a board of trustees.

1-2-104 Initial Determination by Director.

- (1) Upon receipt of pertinent facts about a development covered by these provisions, the director shall make an initial determination whether to pursue the matter further and shall attempt to notify the parties involved.
- (2) If the director determines that the matter should not be pursued, he shall indicate his determination in writing. This determination shall then be communicated to the person who initially contacted the commission. A report of such determinations, with reasons, shall be submitted to the commission at its next meeting.
- (3) If the director or any member of the commission determines that the matter should be pursued further, the director shall direct one or more members of the commission staff to gather relevant facts and data about the matter. The commission staff member or members shall then notify, orally or in writing, the person who initially contacted the commission that the commission will consider the matter at a subsequent commission meeting.

1-2-104 Commission Staff Duties.

- (1) The member or members of the commission staff who are assigned to the particular matter shall gather all relevant facts about the development prior to the commission meeting at which the matter will be considered.

- (2) The Commission staff may seek the assistance of all appropriate local, state, or federal offices and officials and all appropriate private parties in gathering data or in presenting data to the Commission.
- (3) All departments and agencies of state and local government shall provide the Commission staff and the Commission such aid and assistance as are necessary for the performance of their duties under this regulation, as required by 24-65-103(3), C.R.S. 1973.
- (4) The Commission staff shall submit to the director a written report detailing the facts about the potential or actual dangers of injury, loss, or damage to the public health, welfare, or safety posed by the development. The director shall then send a copy of the statement to the Commission Chairperson.
- (5) The Commission staff shall prepare a resolution reflecting the recommendations of the written staff report.

1-2-105 Submission of Written Data Prior to Commission Meeting.

- (1) The Director shall submit a copy of the written report about the development prepared by the staff and any other relevant documents, maps, photos, and other data to each member of the Commission as soon as possible prior to the Commission meeting at which the particular development will be considered.
- (2) The commission staff or director shall also attempt to deliver a copy of the written staff report prepared for presentation to the commission at the initial determination hearing to the local government(s) and developer(s) concerned with the matter and any other person whom they deem to be appropriate.

ARTICLE 2 INITIAL DETERMINATION MEETING

1-2-201 Meeting for Initial Determination.

- (1) The commission may consider a matter under these provisions at any regularly-scheduled or specially-convened meeting, if the Commission Chairperson or at least four members of the commission decide that a meeting should be held.
- (2) Such meeting shall be open to the public.

1-2-202 Notice of Meeting.

- (1) Notice of the meeting shall be made by the commission staff as soon as practicable, but in no event shall such notice be made less than three days prior to the meeting.
- (2) Notice of the meeting shall be sent as soon as practicable to the governing body of the local government(s) involved, the developer(s) involved and to appropriate agencies determined by the director by first-class mail if possible, or notice may be given by oral communication followed by written confirmation if time does not permit prior written notification.
- (3) Notice to the general public shall be made by publication in a newspaper of general circulation in the county where the development is occurring or proposed.
- (4) Notice of the meeting shall include the following:
 - (a) Date, time, and location of the meeting;

- (b) Name of local government involved;
- (c) Name of developer and/or development involved; and
- (d) Brief description of the nature of the possible dangers.

1-2-204 Meeting Procedure.

- (1) The Chairperson of the commission or his designee shall preside at all meetings conducted pursuant to this section, at which a quorum shall be present.
- (2) The commission may hear such testimony and receive such evidence as it deems necessary to render its decision.
- (3) The commission staff may supplement its written report with any additional evidence it wishes to present.
- (4) The commission shall receive testimony and/or written statements and other documents in the following order:
 - (a) Commission staff;
 - (b) Local government(s) involved;
 - (c) Appropriate state and/or federal agencies;
 - (d) Developer(s) involved;
 - (e) Members of the public with relevant information not previously provided.
- (5) The commission may continue the meeting if additional evidence is needed.

1-2-204 Commission Determination.

- (1) Upon completion of the meeting, the commission may determine that the development constitutes a danger of injury, loss, or damage of serious and major proportions to the public health, welfare, or safety.
- (2) Such determination shall be based upon the evidence presented at the meeting and any other relevant evidence available to the commission.
- (3) Such determination shall be made by resolution of the commission adopted by majority vote of those commissioners present.
- (4) The resolution shall include the following:
 - (a) A statement of the pertinent facts and dangers with respect to the development;
 - (b) A statement notifying the governing body of the local government(s) involved of the pertinent facts and dangers with respect to the development;
 - (c) A description of the location of the development;
 - (d) A statement of the action which the commission expects the local government(s) to take; and

- (e) An indication of the reasonable time within which the local government(s) should remedy the situation and a time within which local government(s) must notify the commission of its proposed actions, if any, or decision not to remedy the dangers.

ARTICLE 3 NOTICE TO LOCAL GOVERNMENT(S)

1-2-401 Written Notice.

- (1) Upon adoption of the appropriate resolution, the commission shall order the director to send written notice immediately to the local government(s) and developer(s) involved, stating the pertinent facts and dangers with respect to the development.
- (2) The written notice shall consist of the resolution adopted by the commission and any other materials deemed appropriate.
- (3) The notice shall be sent by certified mail.

1-2-402 Local Government Response to Written Notice.

- (1) The written notice shall request the local government to immediately commence proceedings to remedy any and all dangers related to the development.
- (2) If the local government commences proceedings or determines that it will commence proceedings to remedy the dangers related to the development, the local government shall notify the commission in writing, within the time limit specified by the commission for such notification, describing the action taken or to be taken.
- (3) If the local government determines that it is unable or unwilling to exercise its authority in such a manner as to remedy the dangers related to the development, the local government shall notify the commission of the decision and the reasons therefor, in writing, within the time limit specified by the commission for such notification.

ACTION 4 HEARING TO REVIEW LOCAL GOVERNMENT ACTION

1-2-401 Basis for Commission Hearing.

- (1) The commission may conduct a hearing to review local government action at any regularly-scheduled or specially-convened meeting, subject to the provisions of this article, for any one of the following reasons:
 - (a) Local government has refused to act in accordance with the commission resolution;
 - (b) Local government does not have the authority to act in accordance with the commission resolution;
 - (c) Local government has complied with the commission resolution but is unable to remedy the dangers from the development within a reasonable time;
 - (d) The dangers from the development are such that the local government, acting alone, will be unable to remedy the dangers within a reasonable time;
 - (e) The developer submits a request, with supporting evidence, for reconsideration of the resolution; or
 - (f) Any other reasons which the commission deems appropriate.

- (2) The purpose of the hearing conducted pursuant to this article is to determine whether or not to send a re-quest to the governor to review the matter and order the com- mission to issue a cease and desist order to the developer, after meeting with the commission and the local government(s) involved.
- (3) The director and the commission staff shall review all requests for reconsideration of the resolution and the status of the development and local government's action pursuant to the commission resolution.
- (4) The director shall make a recommendation to the commission chairman on the matter of holding a hearing pursuant to this article.
- (5) The commission also may conduct hearings on petitions for declaratory orders to terminate controversies or to remove uncertainties as to the applicability to the petitioner of any statutory provision or of any rule or order of the commission.

1-2-402 Notice of Hearing.

- (1) If the commission chairman or at least four members of the commission decide that a hearing should be held, written notice of the hearing shall be sent to the local government(s) and the developer(s) involved by first-class mail at least twenty (20) days prior to the hearing. Notice also shall be made by publication in a newspaper of general circulation in the county where the development is occurring or proposed.
- (2) The notice shall contain the following:
 - (a) Time, place, and nature of the hearing;
 - (b) The legal authority under which the hearing is being held; and
 - (c) The matter of law and fact which are the subject of the hearing.
- (3) Any person who may be affected or aggrieved by the commission action at the hearing shall be admitted as a party to the hearing upon his submission to the commission of a written request therefor at least seven (7) days before the commission meeting, setting forth a brief and plain statement of the facts which entitle him to be admitted and the matter which he claims should be decided.
- (4) If any party is unable to attend the hearing at the time and date set, he may request the Commission to reschedule the hearing at the discretion of the Chairperson, at a time and date acceptable to the Commission and to all parties involved, but for not more than thirty (30) days after the original hearing date.
- (5) Any party participating in the proceeding shall agree to submit to the commission, before or after the hearing and pursuant to written request, any and all documents, maps, and other data which the commission deems necessary to render its decision. The written notice of the hearing shall contain a statement to this effect.
- (6) All documents, maps, and other data requested by the commission shall be submitted at least five working days before the hearing.
- (7) The commission staff shall be given an opportunity to examine and evaluate all documents, maps, and other data requested by the commission prior to the hearing, and may submit a written evaluation of such to the commission prior to or at the hearing.

- (8) Any party to the hearing may inspect, at a reasonable time, materials prepared by the commission staff for presentation at the hearing, and may obtain copies thereof for a reasonable charge from the commission.
- (9) The commission staff may inspect, at a reasonable time, materials prepared by any party for presentation at the commission hearing and may obtain copies thereof for a reasonable charge.
- (10) If any party or the Commission staff fails to provide the requested materials, the Commission Chairperson, upon request, may order the party of Commission staff to provide the requested material.

1-2-403 Hearing procedure.

- (1) The Chairperson of the Commission or his designee shall preside over the hearing, at which a quorum shall be present.
- (2) the Chairperson or his designee shall have all powers enumerated in 24-4-105(4), C.R.S. 1973.
- (3) The Commission shall receive testimony and written statements or other documents, if any, having probative value, in the following order:
 - (a) commission staff;
 - (b) local government(s) involved;
 - (c) developer(s) involved;
 - (d) other parties;
 - (e) members of the public.
- (4) Each party to the hearing also shall be given an opportunity to cross-examine witnesses as is required for a full and true disclosure of the facts, submit relevant rebuttal evidence, and object to evidentiary offers.
- (5) The Chairperson or his designee may limit all or part of the evidence presented to written form if the hearing will be expedited and the interests of the parties will not be prejudiced, exclude incompetent and unduly repetitious evidence, and limit the time allowed for cross-examination if the interests of the parties will not be prejudiced.
- (6) Any party to the hearing may represent himself or be represented by legal counsel. Any party may present the relevant testimony of experts.
- (7) The burden of proof shall be on the party requesting the commission action and shall be by a preponderance of the evidence.
- (8) The hearing shall be recorded by either a reporter or electronic recording device. When requested by a party to the hearing or by a member of the commission, a transcript of the hearing or a part thereof shall be prepared. The party, other than a member of the commission, requesting the transcript shall pay all costs thereof and shall provide one copy of the transcript to the commission and one copy to the commission staff. Any hearing transcript on file at the commission office shall be made available to any interested person at reasonable times for inspection and study, and a copy may be obtained for a reasonable charge.
- (9) A record of the hearing shall be kept and shall contain the following:

- (a) Hearing transcript, if any;
- (b) All documents, maps, and other data presented to the commission, either prior to, during, or after the hearing.

1-2-404 Commission Determination.

- (1) The commission shall issue a written order in the form of a resolution at the end of the hearing or *after* due deliberation within a reasonable time thereafter. The commission's deliberation and decision shall be made at a meeting open to the public.
- (2) The commission order shall contain the following:
 - (a) A statement of findings and conclusions upon all the material issues of fact, law, or discretion presented by the record;
 - (b) The determination, based upon the record, that the development does or does not constitute a danger of injury, loss, or damage of serious and major proportions to the public health, welfare, or safety;
 - (c) A determination that the local government(s) involved has or has not had a reasonable time within which to remedy the danger and has either failed to do so or is unable to do so;
 - (d) A determination of whether or not to request the governor to review the matter;
 - (e) Incorporation by reference of any earlier commission resolution(s) pertaining to the same matter; and
 - (f) Such other findings and conclusions as the commission may deem appropriate.
- (3) A copy of the order shall be sent by certified mail to each party to the hearing. A copy shall also be maintained at the commission office and shall be made available to any person requesting a copy of the resolution at a reasonable charge.
- (4) The order shall be effective upon the date mailed to the parties or such later date as is stated in the order.
- (5) If the order contains a determination to request the governor to review the matter, a copy of the order shall be personally delivered to the governor immediately after preparation of the order.

ARTICLE 5 REQUEST TO THE GOVERNOR

1-2-501 Contents of Request.

- (1) The request to the governor shall include all resolutions adopted by the commission pertaining to the matter and the record for any hearings conducted on the matter.
- (2) The request may also contain written summaries of the development and the dangers created by it, written summaries of the data presented to the commission, and any additional recommendations from the commission staff.
- (3) The request shall contain a cover letter asking the governor to review the facts and dangers with respect to the development, to meet with the local government(s) involved and the commission at

the earliest possible time, and to direct the commission to issue a cease and desist order to the developer.

ARTICLE 6 CEASE AND DESIST ORDER

1-2-601 Direction from Governor.

- (1) If the governor determines that the development constitutes a danger of injury, loss, or damage of serious and major proportions to the public health, welfare, or safety and directs the commission to issue a cease and desist order, the commission shall issue such order immediately.
- (2) Upon receipt of such direction from the governor, the Commission Chairperson or his designee shall direct the director to prepare a written cease and desist order.

1-2-602 Contents of Cease and Desist order.

- (1) The written cease and desist order shall contain the following information:
 - (a) The name of the developer(s);
 - (b) An exact description of the location and nature of the development covered by the order;
 - (c) A statement that the governor has directed the commission to issue the order;
 - (d) A statement that the person named in the order discontinue the land development activity which constitutes a danger of injury, loss, or damage of serious and major proportions to the public health, welfare, or safety immediately upon receipt of the written cease and desist order;
 - (e) A statement that the commission will petition the district court for the county in which the development is located for a temporary restraining order, preliminary injunction, or permanent injunction if the land development activity is continued after receipt of the cease and desist order; and
 - (f) A statement that the commission staff is establishing planning criteria necessary to eliminate or avoid the land development activity which constitutes a danger of injury loss, or damage of serious and major proportions to the public health, welfare, or safety and that the planning criteria will be sent to the appropriate local government agency immediately upon completion.
- (2) The cease and desist order shall be signed by the chairperson of the Commission or his designee, which may include the director.
- (3) The cease and desist order shall be effective on the date received by the developer(s) or such later date as may be indicated in the order.

1-2-603 Service.

- (1) The cease and desist order shall be sent by certified mail to the last known address(es) of the developer(s).
- (2) A copy of the order shall be sent to the local government(s) involved, other parties and the governor.

- (3) A copy of the order also shall be kept on file at the commission office and shall be made available for inspection and study by any person. A copy of the order may be obtained from the commission for a reasonable charge.

1-2-604 Order to Local Government to Implement Planning Criteria.

- (1) Immediately upon issuance of a cease and desist order, the commission staff shall prepare a statement of the planning criteria necessary to eliminate or avoid the land development activity which constitutes a danger of injury, loss, or damage of serious and major proportions to the public health, welfare, or safety.
- (2) The commission staff shall present the planning criteria statement to the commission at the next regularly scheduled commission meeting. However, if such meeting is to be held within ten days after the effective date of the cease and desist order, the commission staff may present the planning criteria statement at the commission meeting following the next regularly scheduled meeting.
- (3) Upon approval and adoption by the commission, the planning criteria statement shall be sent to local government (s) involved with an order to the appropriate local government agency or agencies.
- (4) The order shall specify the agency or agencies subject to the order and shall direct the specified local government agency or agencies to take immediate action to implement the planning criteria through adoption of an appropriate regulation to control or prevent the dangers caused by the development.
- (5) If the appropriate local governmental agency or agencies do not take immediate steps to implement the order, the commission may apply to the district court for the county in which the development is located for a temporary restraining order, preliminary injunction, or permanent injunction, ordering the local governmental agency or agencies to take immediate action to implement the planning criteria.

PART 1 COLORADO LAND USE COMMISSION PROCEDURES

Chapter. 3 PROCEDURE FOR ADOPTING RULES

ARTICLE 1 Introduction

1-4-101 Purposes.

These regulations are adopted in order to ensure that all rules, regulations, model regulations, and guidelines adopted by the Commission comply with applicable state laws and to afford all members of the public appropriate and adequate opportunity to participate in the procedure for adoption of such rules.

1-4-102 Authority.

These rules are adopted pursuant to the authority stated in Article 1-1-101 of the Commission's General Rules of Procedure.

1-4-103 Definition.

As used in this regulation, the term "rule" includes rules and regulations or amendments thereto, but does not include Rules of Agency Organization, interpretative rules or general statements of policy.

1-4-104 Temporary or Emergency Rule-Making.

- (1) The Commission may adopt a rule on a temporary or emergency basis without complying with the notice and hearing requirements of these rules, if the Commission finds that immediate adoption of the rule is imperatively necessary for the preservation of public health, safety, or welfare and that compliance with those procedures contained herein and in 24-4-103, C.R.S. 1973, would be contrary to the public interest.
- (2) Such temporary or emergency rules may have effect for up to three months, unless they are adopted on a permanent basis pursuant to the procedures set out in this chapter.

1-4-105 Open Meetings.

All hearings and other meetings held pursuant to these rules shall be conducted in accordance with the open meetings requirements of Section 1-1-108 of Commission procedures and any other requirements of state law.

ARTICLE 2 CONTEMPLATED RULE MAKING

1-4-201 Informal Meetings and Workshops.

When the Commission or the Commission's staff determines to begin consideration of adopting a rule, but before a proposed rule has been promulgated, the Commission or the Commission's staff may hold one or more informal meetings or workshops in order to afford interested persons an opportunity to submit views or otherwise participate informally on the proposals under consideration.

1-4-202 Notice.

- (1) All persons on the Commission's mailing list shall be notified of such informal meeting or workshop at least seven working days prior to the initial meeting or workshop. Thereafter, notice of continuations of the meeting or of subsequent meetings or workshops on the same issue need not be sent to all persons on the mailing list.
- (2) The notice of the informal meeting or workshop shall state the time, date, place, and subject matter of the meeting, and may include a copy of the proposals under consideration.

ARTICLE 3 RULE-MAKING PROCEDURE

1-4-301 Hearing Required.

After the Commission or Commission staff has formulated a proposed rule, the Commission shall set the matter for a public hearing before the full Commission.

1-4-302 Notice of Rule-Making.

- (1) Notice of the proposed rule-making hearing shall be published at least twenty days prior to the hearing by mailing a copy of the notice to each person on the Commission's mailing list, the Attorney General and other relevant state and federal agencies.
- (2) A copy of the proposed rule and the notice of rule-making shall be kept on file in the Commission's office for inspection by any person during regular office hours and may be copied for a reasonable fee.
- (3) Notice of the proposed rule-making hearing shall be published in a newspaper of general circulation in the state at least twenty (20) days prior to the hearing.

1-4-303 Contents of Notice.

The notice shall specify the time, place, date, and nature of the rule-making proceedings, the authority under which the rule is proposed, and either a summary or a full copy of the proposed rule.

1-4-304 Procedure.

- (1) The rule-making hearing shall be conducted according to the Commission's General Rules of Procedure.
- (2) Notwithstanding any other provisions of these regulations, the hearing shall afford all interested persons an opportunity to submit written data, views, or arguments. All interested persons shall also be given an opportunity to present such data, views, or arguments orally unless the Commission finds this to be unnecessary.
- (3) A rule-making hearing may be continued for as long as the Commission deems necessary. However, a proposed rule must be finally acted upon within 180 days of the original notice of proposed rule-making.
- (4) The hearing shall be recorded by an electronic recording device or stenographer. Any person may obtain a transcription of the hearing by paying the cost thereof and by providing a copy of any transcript to the Commission.

1-4-305 Petition for Issuance, Amendment, or Repeal of the Rule.

- (1) Any interested person shall have the right to petition for the issuance, amendment, or repeal of a rule.
- (2) Such petition shall be kept on file at the Commission offices and shall be open for inspection by any person during regular office hours.
- (3) The Commission may hear the petition at its discretion, except that when the Commission schedules a hearing on a proposed rule related to any petition, such petition shall be considered and acted upon in the same proceeding.

1-4-307 Lobbyist Registration and Disclosure.

- (1) All persons participating in either an informal meeting on contemplated rule-making or in a hearing on a proposed rule who are paid for their participation or who are reimbursed for their expenses shall file the appropriate registration and/or disclosure forms as a lobbyist with the office of the secretary of state, either before or immediately after the meeting or hearing. The provisions of this subsection (1) shall not apply to any state official acting in his official capacity or any elected public official acting in his official capacity.
- (2) The Commission shall provide the appropriate registration and disclosure forms to persons who must file with the secretary of state.
- (3) At each Commission meeting and informal meeting or work-shop, an attendance list shall be compiled, indicating the persons in attendance and whom they represent. The attendance list shall be kept on file by the Commission and copies made available to persons for a reasonable charge.

ARTICLE 4 ADOPTION OF RULE

1-4-401 Commission Determination.

- (1) The Commission shall consider all evidence submitted at the rule-making hearing and may consider any other evidence available to the Commission in making its determination.

- (2) The Commission may adopt, adopt with modification, or reject the proposed rule by a majority vote of the Commission members present at the hearing.

1-4-402 Notice of Adopted Rule.

- (1) Upon adoption or adoption with modification of a rule, the Commission shall submit the rule to the Attorney General for his opinion on its constitutionality and legality.
- (2) Upon receipt of an Attorney General opinion approving a rule, the Commission shall publish the rule as finally adopted by mailing a copy of the rule to all persons on the Commission's mailing list and relevant state and federal agencies.
- (3) Two copies of each rule as finally adopted and the Attorney General opinion for each rule shall be submitted to the office of the secretary of state according to the form, if any, prescribed by the secretary of state.

1-4-403 Effective Date.

A rule shall be effective twenty days after it is published as finally adopted and approved.

1-4-404 Register of Commission Rules.

- (1) The Commission shall maintain a register of all rules as finally adopted, including a copy of the Attorney General opinion for each rule.
- (2) Any person may inspect the register of Commission rules during office hours and may receive a copy of any part thereof for a reasonable charge.

PART 1 LAND USE COMMISSION PROCEDURES

Chapter 4 PROCEDURES FOR INITIATION AND REVIEW OF LOCAL GOVERNMENT ACTION UNDER H.B. 1041 (1974)

ARTICLE 1

1-4-101 Intent and Purpose.

The intent and purpose of these regulations shall be to:

- (1) Provide for the conduct of the Land Use Commission;
- (2) Facilitate administration of matters of state interest consistent with 24-65.1-202 and 204, C.R.S. 1973;
- (3) Assure compliance by local governments with the standards and provisions set forth in 24-65.1-101 et seq., C.R.S. 1973;
- (4) Fulfill the Commission's responsibility to initiate and review designation and regulation of matters of state interest by local governments under 24-65.1-406 and 407, C.R.S. 1973; and
- (5) Establish a procedure for the Commission to exercise its duties under 24-65.1-405, 406, 407, C.R.S. 1973.

1-4-102-Applicability

These regulations shall apply to:

- (1) All local government orders, adopted pursuant to 24.65.1-101, et seq., C.R.S. 1973, designating matters of state interest and enacting guidelines and regulations for the administration thereof (hereinafter referred to in this chapter as “orders” or “an order”);
- (2) All Commission recommendations and requests to local governments to modify an order and/or to take action in regard to a specific matter of state interest; and
- (3) All other Commission actions taken to ensure the proper administration of matters of state interest.

1-4-104 Authority.

These procedures are authorized by §24-65-103(3) and §§24-65.1-405(2), 406, and 407, C.R.S. 1973.

1-4-104 Temporary Suspension of Development and/or Conduct of an activity.

- (1) After a matter of state interest is designated by a local government pursuant to §24-65.1-404, C.R.S. 1973, no person shall engage in development in the designated area of state interest and no person shall conduct the designated activity of state interest until:
 - (a) The original or the modified order for such area is reviewed and accepted by the Commission pursuant to these regulations or;
 - (b) The Commission, acting in its discretion under 1-4- 506 of these procedures, declines to seek judicial review of a local government refusal to take action in conformance with a formal Commission request; or
 - (c) A court of competent jurisdiction has finally determined the matter; or
 - (d) The local government has rejected a Commission recommendation and the Commission has decided not to formally request the local government to take action with regard to a matter of state interest pursuant to 24-65.1-407, C.R.S. 1973.
- (2) After a local government has received a formal Commission request to designate a matter of state interest pursuant to 24-65.1-407, C.R.S. 1973, no person shall engage in development in the area for which designation has been requested, nor conduct an activity within the local government's jurisdiction for which designation has been requested until:
 - (a) The local government has conformed with the Commission request and the resulting order has been reviewed and accepted by the Commission; or
 - (b) Local government has not acted upon the request or has refused to follow the request and the Commission, proceeding under §1-4-206 of these regulations, has found that there was good cause for the failure to act and has declined to seek judicial review of the local government refusal to designate the matter of state interest; or
 - (c) A court of competent jurisdiction has finally determined the matter or has authorized the development or activity to proceed under terms and conditions established by the court.

ARTICLE II REQUESTS FOR LOCAL GOVERNMENT DESIGNATIONS

1-4-201 Staff Study of Potential Matters of State Interest.

- (1) Any member of the Commission or its Director, acting on his own initiative or in response to information submitted by any person, may at any time request the Commission staff to conduct a study of any area or activity within the state which could be a matter of state interest. In determining whether to request a staff study, the Commission or its director shall consider the number of people presenting the request and whether local officials have been given the opportunity to address the matter pursuant to C.R.S. 1973, 24-65.1-101, et seq.
- (2) In the course of such a study the staff shall consider:
 - (a) The exact nature of the area or activity in question.; and
 - (b) Actions which local governments have taken with respect to the area or activity; and
 - (c) Information concerning the area or activity from appropriate local, state and federal agencies, and private parties; and
 - (d) Relationship of the area or activity to any applicable land use plans; and
 - (e) Reasons why the particular area or activity is of state interest, the dangers that would result from uncontrolled development of any such area or uncontrolled conduct of such activity, and the advantages of development of such area or conduct of such activity in a coordinated manner.
- (3) Upon completion of such study, the staff shall present a written report to the Commission of the results of its study.
- (4) The report shall include:
 - (a) A specific description of the activity in question or of the boundaries of the area in question; and
 - (b) A listing of local governments having jurisdiction over, and actions taken in regard to, the area or activity in question; and
 - (c) Findings of the staff with regard to §1-4-201(2)(e) of these regulations; and
 - (d) Recommendations for Commission action.
- (5) The Commission staff shall prepare resolutions reflecting the alternative courses of action contained in the staff study.

1-4-202 Commission Consideration.

- (1) Upon receipt of a staff report, the Commission shall consider the report and recommendations therein at the next regularly scheduled Commission meeting or at a meeting specially convened by the Commission. Consideration of the staff report may be scheduled for a future Commission meeting prior to submittal of the report to the commission. The staff report shall be mailed to the Commission, the developer(s) involved if the request is with respect to a specific development, and the appropriate local government(s) at least (5) days prior to the designation request meeting.
 - (a) Notice of the meeting shall be made by the Commission staff as soon as practicable, but in no event shall such notice be made less than five (5) days prior to the meeting.

- (b) Notice of the meeting shall be sent as soon as practicable to the governing body of the local government(s) involved, to the developer(s) involved if the request being considered' in regard to a specific development, and to the appropriate agencies determined by the director by first- class mail, if possible, or notice may be given by oral communication followed by written confirmation, if time does not permit prior written notification.
- (c) Notice to the general public shall be made by publication in a newspaper of general circulation in the state. The Commission staff may also send notice to local newspapers in the area affected by the contemplated designation request.
- (d) Notice of the meeting shall include:
 - I. The date, time, and location of the meeting;
 - II. Name of the local government(s) involved;
 - III. Name of the developer and/or development involved if the request is being considered with respect to a particular development; and
 - IV. A brief general description of the subject matter to be considered.
- (2) After consideration of the staff study and of any recommendations, comments or materials from local governments involved and from any interested person, the Commission shall, by majority vote of those members present, take formal action with respect to the matter in question, which action may include:
 - (a) A determination that the Commission does not consider the matter in question to be of sufficient state interest to require immediate action by the Commission. Such a determination shall not preclude a local government from proceeding to designate such a matter pursuant to §24-65.1-404, C.R.S. 1973; or
 - (b) A postponement of further Commission action after notification of pending prompt local government action on the matter in question; or
 - (c) A formal request to a local government to take action with respect to a specific area or activity as a matter of state concern; or
 - (d) A decision to exercise Temporary Emergency Powers to deal with the situation.
- (3) The Commission may take action pursuant to 2(c) and (d) of this section concurrently.

1-4-204 Request to Local Governments.

- (1) In the event that the Commission requests a local government to take action with respect to a matter of state interest, the Commission shall direct the Director to immediately transmit the Commission's formal request to the local government involved.
- (2) The formal request shall include the following:
 - (a) A copy of the staff study considered by the Commission; and
 - (b) A list of all materials considered by the Commission in reaching its decision; and
 - (c) Any findings made by the Commission; and

- (d) An identification of the specific matter considered by the Commission to be a matter of state interest, either specifying the boundaries of the area to be designated or describing specifically the activity to be designated; and
- (e) Reasons why the particular matter is of state interest; and
- (f) The dangers that would result from uncontrolled development of any such area or uncontrolled conduct of such activity; and
- (g) The advantages of development of such area or conduct of such activity in a coordinated manner.

1-4-204 Local Government Action.

- (1) Within 30 days of receipt of a formal Commission request to take action with respect to a matter of state interest, the local government shall publish notice and within 60 days shall hold a public designation hearing pursuant to §24-65.1-404, C.R.S. 1973.
- (2) Upon completion of the public designation hearing it shall be the duty of the local government to issue an order either adopting, adopting with modification, or rejecting the matters encompassed by the formal request.

1-4-205 Commission Review.

Local government orders of designation and regulations, or orders rejecting designation, adopted pursuant to the Commission's formal request shall be reviewed under the procedures established by Articles III, IV and V of this chapter.

1-4-206 Judicial Review.

In the event that the local government fails to designate or adopt regulations in response to a Commission formal request, or the local government order does not conform to statutory requirements, the Commission shall at the next regularly-scheduled meeting following the local government's action, consider the validity of the action. Unless the Commission finds that there was good cause for the local government's failure to designate or adopt regulations pursuant to the Commission request, the Commission shall seek judicial review of the local government action by a trial de novo in the district court for the judicial district in which the local government is located.

1-4-207 Temporary Emergency Powers.

If the Commission takes action pursuant to sections 202 (2) (d) or or 202(3) above, the matter *also* shall be considered according to provisions of Chapter 2 of the Land Use Commission Procedures, governing temporary emergency power proceedings.

ARTICLE III REVIEW OF LOCAL GOVERNMENT ORDERS

1-4-401 Local Governments to Forward Relevant Materials.

- (1) Within thirty (30) days of a local government adoption of an order, said local government shall forward to the Land Use Commission all relevant materials relating to the designation, guidelines, and regulations, or to the refusal to designate.
- (2) As used in this chapter "relevant materials" shall include each and all of the following:

- (a) The records of any public hearings on designation and guidelines and regulations, including the following:
 - (i) Notice of the hearing; and
 - (ii) Certificate of publication of the notice; and
 - (iii) Names and addresses of persons who presented oral or written statements of evidence; and
 - (iv) A copy of all written evidence considered; and
 - (v) A transcript of the proceeding if one was made.
 - (b) Written findings of the governing body concerning the matters considered which shall include the governing body's reasons for designation or rejection of designation.
- (3) In the event that the hearing results in adoption of an order of designation, "relevant materials" shall also include the following:
- (a) the order of designation and any maps pertaining thereto;
 - (b) The complete text of guidelines and regulations adopted for administration of the designated matter, and the order adopting said guidelines and regulations;
 - (c) Any explanatory material which the local government feels would aid Land Use Commission review; and
 - (d) In the event that the regulations adopted are not in the same format as that used in Model Regulations promulgated by the Land Use Commission, an explanation of the manner in which the regulations will be incorporated into and/or administered and enforced under existing local government ordinances or regulations.
- (4) Forwarding of a local government order and relevant materials shall be deemed to be completed when all materials have been transmitted to the Commission staff. Completion of forwarding shall be determined by the Director.

1-4-402 Official Commission Receipt.

- (1) If completion of forwarding of a local government order and relevant materials occurs after a regularly scheduled Commission meeting and before the next regular mid-session Executive Committee meeting, the order shall be officially received at the first mid-session meeting of the Executive Committee after completion of forwarding. An order so received shall be considered for formal action at the next regularly scheduled monthly Commission meeting.
- (2) If completion of forwarding of a local government order and relevant materials occurs after a mid-session Executive Committee meeting and before a regularly scheduled Commission meeting, the order shall be officially received at the first regularly scheduled Commission meeting after completion of forwarding. An order so received may be considered for formal action at a special Commission meeting convened for that purpose.
- (3) If completion of forwarding of a local government order and relevant materials occurs after a regularly scheduled commission meeting and a mid-season executive committee meeting does not occur, the Commission Chairperson may, at his or her discretion, officially receive the order. An order so

received shall be considered for formal action at the next regularly scheduled monthly Commission meeting.

1-4-403 Referral for Review.

- (1) Upon official receipt of a local government order and relevant materials, said order and materials shall be referred to the Director who shall implement a staff review of the order and materials.
- (2) Upon official receipt the Director shall be directed to send official notice to the local government submitting the order and materials. Such notice shall inform the local government that their order and materials have been officially received, that they are being referred for staff review, and that they will be considered for formal action at the next regularly scheduled meeting of the Commission, or at a specially convened meeting. Such notice shall indicate the time, place and date of the meeting at which the local government order shall be considered.
- (3) The published agenda for the next meeting following official receipt shall indicate local government orders which will be considered for formal action at that meeting.

1-4-404 Review.

- (1) The Land Use Commission staff shall make a prompt review of every local government order.
- (2) In its review the staff shall consider and make written comments about the following:
 - (a) Compliance with procedural requirements in the adoption of the order;
 - (b) Comparison of the order with Model Regulations promulgated by the Land Use Commission;
 - (c) Compliance of the order with the relevant provisions of Part 2 of 24-65.1-101 et seq., C.R.S. 1973; and
 - (d) Adequacy of the order in protecting against loss or damage of serious and major proportions to the public, health, welfare, or safety that might result from development proposed or in progress.

1-4-405 Recommendation of Staff

- (1) Upon completion of the review, the Staff shall prepare a written recommendation for the Land Use Commission.
- (2) Said recommendation shall incorporate the comments of the staff and shall recommend that the Land Use Commission:
 - (a) Accept the order of designation and the guidelines and regulations for administration; or
 - (b) Recommend specific modification thereof to the local government; or
 - (c) Formally request the local government to modify the order or take other action with regard to the matter; or
 - (d) Recommend other changes in the order which are deemed to be appropriate in a technical sense, but which are not considered necessary to the validity of the order; or
 - (e) Proceed under the provisions of §1-2-101, et seq., of the Commission's Procedures, Temporary Emergency Power.

- (3) Staff review and recommendations shall be completed within fourteen days of referral and shall be forwarded to each member of the Commission and to the local government which had submitted the order.

ARTICLE IV ACCEPTANCE OR REQUEST FOR MODIFICATION

1-4-401 Land Use Commission to Take Formal Action.

- (1) At the first regularly scheduled monthly meeting or specially convened meeting of the Land Use Commission following official receipt of a local government order and relevant materials, the Land Use Commission shall take formal action with respect to said order.
- (2) In reaching a decision on the formal action to be taken, the Commission shall consider recommendations and comments from the Commission Director, from representatives of the local government involved, and from any interested persons.

1-4-402 Acceptance, Recommendation for Modification, or Formal Request to Take Action.

- (1) By a majority vote of the Commission members present, provided that a quorum of the Commission is present, the Commission shall:
 - (a) Officially accept the order adopted by the local government changes thereto; or
 - (b) Officially accept the order adopted and recommend technical changes thereto; or
 - (c) Recommend to the local government pursuant to §24-65.1-406, C.R.S. 1973, that the order be modified to conform with such recommendations as the Commission deems necessary for compliance with Part 2 of Article 65.1 of Title 24, C.R.S. 1973; or
 - (d) Formally request the local government, pursuant to §24-65.1-407, C.R.S. 1973, to adopt a new order or take other action that conforms with such recommendations as the Commission deems necessary for compliance with the standards of Article 65.1, title 24, C.R.S. 1973; or
 - (e) Invoke the Commission's Temporary Emergency Power procedure as it relates to a matter of state interest within the jurisdiction of the local government involved, in which case the commission shall proceed under the provisions of Chapter 2 of the Land Use Commission Procedures and the Commission resolution Issued pursuant to this section shall be deemed to satisfy the requirements of Articles 2 and 3 of Chapter 2 of the Land Use commission Procedures; or
 - (f) Request the local government to act pursuant to both (d) and (e) above.
 - (g) Take other action which the Commission deems appropriate.
- (2) Immediately after a vote on formal action, the Land Use Commission shall issue an official resolution reflecting the action taken.
- (3) Such resolution shall direct the Director or the staff to prepare a written notice of the action taken for transmittal to the local government, and shall indicate any findings made by the Commission and any recommendations which are to be included in the written notice.

1-4-404 Local Government to be Notified of Acceptance.

- (1) In the event that the Commission officially accepts the order of designation submitted by the local government, the Director shall send notice of acceptance to the local government within seven days of such official acceptance.
- (2) Such notice shall include a copy of the official resolution of acceptance. Any recommendations for technical changes in the local government order, and any other material which the Commission or Director may deem relevant.

1-4-404 Resolution Recommending Modification.

- (1) In the event that the Commission recommends modification of a local government order, pursuant to §24-65.1-406, C.R.S. 1973, notice of such recommendation shall be sent to the local government within seven days after the Commission has recommended modification.
- (2) Such notice shall include the following:
 - (a) A copy of the resolution recommending modification which contains the specific recommendations being made;
 - (b) A written summary of materials or evidence considered by the Commission in arriving at its decision;
 - (c) Any other materials which the Commission may deem relevant.

1-4-405 Formal Request to Take Action.

- (1) In the event that the Commission, pursuant to 1-4-402 (1)(d) or (f), above, formally requests the local government to adopt a new order or take other action deemed necessary for compliance with the provisions of 24-65.1-101, et seq., C.R.S. 1973, notice of such request shall promptly be sent to the local government.
- (2) Such notice shall include the following:
 - (a) A copy of the resolution requesting action which contains the specific recommendations being made;
 - (b) A written summary of materials or evidence considered by the Commission in arriving at its decision;
 - (c) Written findings as to why the particular area or activity is of state interest, the dangers that would result from uncontrolled development of any such area or uncontrolled conduct of such activity, and the advantages of development of such area or conduct of such activity in a coordinated manner; and
 - (d) Any other materials which the Commission may deem relevant.

1-4-406 Court Review of Local Government Action.

If the Commission, pursuant to section 1-4-402(1) (g), deems it appropriate to have a court review the local government's action under C.R.S. 1973, 24-65.1-407, the Commission shall proceed according to section 1-4-506 of this regulation.

ARTICLE V PROCEDURE AFTER COMMISSION REVIEW

1-4-501 Acceptance.

After the local government has received notice of Commission acceptance of its order, the designation and regulation shall be considered to be finally determined and the local government may consider applications for permits under its regulations.

1-4-502 Recommendation for Modifications.

- (1) If the Commission recommends that the local government modify its order, the local government shall, within 30 days of receipt of such request:
 - (a) Modify its original order in a manner consistent with the recommendations of the Commission and re-submit the modified order to the Commission for review; or
 - (b) Notify the Commission that the Commission's recommendation for modification is rejected.
- (2) A modified order re-submitted to the Commission for review or a notice of rejection of a Commission recommendation must be accompanied by written findings by the local government in support of either action taken.
- (3) In the event that action is taken by the local government under this section, the order in question shall not be considered to be finally determined and no applications for permits under said regulations may be considered and no person shall either engage in development or conduct a designated activity until such matter is finally determined pursuant to these regulations.
- (4) The requirements of this section shall not apply to local government consideration of technical changes, recommended as a form of technical assistance, but not considered by the Commission to be necessary for compliance with statutory requirements.

1-4-504 Re-submitted Orders.

In the event that an order is modified by local government in response to Commission recommendation and is re-submitted to the Commission for review, such re-submitted material shall be handled by the Commission in the same manner as provided in these regulations for an original order.

1-4-504 Re-submitted Orders.

- (1) In the event that an order is modified by local government in response to Commission recommendation and is re-submitted to the Commission for review, such re-submitted material shall be handled by the Commission in the same manner as provided in these regulations for an original order.
- (2) If, after consideration of materials and evidence presented during initial Commission review of the order in question and of written findings submitted by the local government in support of its action, the Commission determines that changes in the local government order are necessary for compliance with 24-65.1-101, et seq., C.R.S. 1973, the Commission shall, pursuant to 24-65.1-407, C.R.S. 1973, formally request the local government to adopt an order or take other action that conforms with such recommendations as the Commission deems necessary for compliance.
- (3) Notice of such formal request shall be transmitted to the local government in accordance with §1-4-405 of these regulations
- (4) If the Commission determines not to formally request the local government to take action, the local government order shall be considered to be accepted and the provisions of §1-4-501 of these regulations shall apply.

- (5) In the event that the Commission has formally requested a local government to designate one or more matters of state interest, the local government has held a designation hearing and issued an order there- under, and the local government has failed to modify the order pursuant to a Commission recommendation, the Commission may seek judicial review of the matter pursuant to 1-4-406 and 1-4-506 of these rules.

1-4-505 Commission Formal Requests.

In the event that the Commission formally requests the local government to adopt a new order or take other action which the Commission deems necessary for compliance with the requirements of 24-65.1-101, et seq., C.R.S. 1973, the local government shall take action as provided by §§1-4-204 and 301 of these regulations.

1-4-506 Judicial Review.

- (1) If the Commission issues a formal request to a local government to take action and the local government fails to adopt an order or take other action that conforms with standards which the Commission deems necessary for with 24-65.1-101, et seq., C.R.S. 1973, the Commission may seek judicial review of the local government's action or failure to act in a trial de novo in the district court for the judicial district in which the local government is located.
- (2) After the Commission has formally requested a local government to take action with regard to a specific matter which the Commission considers to be of state interest within the local government's jurisdiction, and before the matter has been finally determined, the Commission may seek a temporary restraining order, preliminary injunction, or permanent injunction in the district court for the judicial district in which the local government is located. The Commission may seek such relief in order to:
- (a) Prevent any development by any person in an area subject to the Commission request;
 - (b) Prevent the local government from developing or attempting to permit development in an area or conduct of an activity subject to the Commission request; or,
 - (c) Prevent any person from conducting an activity which is subject to the Commission request.

SUBDIVISION SUMMARY FORM

_____ County
 Date: _____
 Subdivision Name: _____
 Filing _____
 Location of Subdivision: TOWNSHIP _____ RANGE _____ SEC _____ 1/4 _____
 Owner(s) Name _____
 Address _____
 Subdivider(s) Name _____
 Address _____

Type of Submission:
 Request for Exemption _____
 Preliminary Plan _____
 Final Plat _____

Type of Subdivision	Number of Dwelling Units	Area (Acres)	% of * Total Area
() Single Family	_____	_____	_____
() Apartments	_____	_____	_____
() Condominiums	_____	_____	_____
() Mobile Homes	_____	_____	_____
() Commercial	N.A.	_____	_____
() Industrial	N.A.	_____	_____
() Other (specify)	_____	_____	_____

Street _____
 Walkways _____
 Dedicated School Sites _____
 Reserved School Sites _____
 Dedicated Park Sites _____
 Reserved Park Sites _____
 Private Open Areas _____
 Easements _____
 Other (specify) _____

*By Map Measure

Total

Editor's Notes

History